

OCT 13 1995



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 11037
(SECOND REVISION)

EXPIRATION DATE: June 30, 1997

1. GRANTEE: Rohm & Haas Company, Philadelphia, Pennsylvania.
(See Appendix A of this exemption)
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain pesticides containing maneb stabilized against self-heating or maneb preparations stabilized against self-heating which, when transported in non-bulk packagings, are not subject to the requirements of 49 CFR Parts 171 to 180. This exemption provides no relief from any regulation other than as specifically stated herein. Each of the following is hereby granted the status of a party to this exemption:
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Parts 171-180.
5. BASIS. This exemption is based on an application dated July 7, 1995, submitted on behalf of Rohm & Haas Company in accordance with 49 CFR 107.105. The application also takes into account Special Provision 140 in the United Nations Recommendations on the Transport of Dangerous Goods which states that "Maneb or maneb preparations, stabilized, are not subject to the Recommendations provided that the competent authority is satisfied by the result of relevant tests that dangerous gases or vapours will not be evolved under normal conditions of transport." (The applicants submitted test data to support their claim that "dangerous gases or vapours will not be evolved under normal conditions of transport.")

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Not Applicable (NA)	NA	NA	NA

7. PACKAGINGS AND SAFETY CONTROL MEASURES: Packaging must conform to requirements prescribed in 49 CFR 173.213.8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. The requirements of 49 CFR Parts 171 through 180 do not apply to packages transported by motor vehicle, rail car or aircraft, except that a hazardous substance must conform to the requirements of §§ 172.203(c) and 172.324; a marine pollutant in bulk packaging must conform to the requirements of §§ 172.203(i) and 172.322; and a hazardous waste must conform to the requirements of § 172.205 with respect to a hazardous waste manifest.

9. MODES OF TRANSPORTATION AUTHORIZED.

Motor vehicle, rail freight, passenger-carrying aircraft, and cargo aircraft only.

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